

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action No. 05-cv-01917-RPM

ADEPT COMPUTER SOLUTIONS, INC., a California corporation,

Plaintiff,

v.

ZOLL DATA SYSTEMS, INC., a Delaware corporation and
JOHN DOES 1-20,

Defendant.

JUDGMENT

Pursuant to plaintiff's Notice of Dismissal of Defendants John Doe 1-20, filed September 6, 2006 [57], it was

ORDERED that defendants John Does 1-20 were dismissed.

Pursuant to the oral representations made by counsel for plaintiff during the May 16, 2007 Status Conference [138] and the December 10, 2007 sixth day of jury trial [192], it was

FURTHER ORDERED that plaintiff's claims for injunctive relief and Lanham act were withdrawn.

Pursuant to the Court's December 10, 2007 Rule 50 oral findings of fact and conclusions of law, made by Senior District Judge Richard P. Matsch, incorporated herein by reference, it was

FURTHER ORDERED that all remaining claims except for ones submitted to the jury were dismissed.

Pursuant to and in accordance with Jury's Verdict dated December 14, 2007, it is

FURTHER ORDERED judgment is entered in favor of the plaintiff Adept Computer Solutions, Inc. and against defendant Zoll Data Systems, Inc. for \$150,660.21 on the claim for breach

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of contract and \$243,750.00 on the claim for copyright infringement and \$117,500.00 (47 x \$2,500.00) on the claim for a violation of DMCA under 17 U.S.C. § 1203(b)(5).

Pursuant to the Order Ruling on Post-Verdict Motions entered by Senior Judge District Judge Richard P. Matsch entered February 14, 2008, it is

FURTHER ORDERED that plaintiff is awarded prejudgment interest in the amount of \$72,798.09 (\$69,908.89 + \$2,889.20 (12/14/07 to 2/14/08 = 62 x 46.60)) on its claim for breach of contract and \$67,312.46 (64,801.46 + \$2,511.00 (12/14/07 to 2/14/08 = 62 x 40.50) on its claim for copyright infringement. It is

FURTHER ORDERED that the total judgment amount awarded to plaintiff plus prejudgment interest is \$652,020.76 (\$150,660.21 + \$243,750.00 + 72,798.09 + 67,312.46 + \$117,500.00). It is

FURTHER ORDERED that no attorney fees are awarded on plaintiff's claim for a violation of the DMCA under 17 U.S.C. § 1203(b)(5). It is

FURTHER ORDERED that no costs are awarded pursuant to Fed.R.Civ.P. 54(d). It is

FURTHER ORDERED that post judgment interest shall accrue at the legal rate of 2.08% from the date of entry of this judgment.

DATED at Denver, Colorado, this 14th day of February , 2008.

APPROVED:

s/Richard P. Matsch

Richard P. Matsch
Senior District Judge

FOR THE COURT:

Gregory C. Langham, Clerk

J. Chris Smith

By: _____
J. Chris Smith, Deputy Clerk